

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 6054 of 2021

Applicant :- Deepak Kumar

Opposite Party :- Ankit Kumar Yadav, Executive Engineer

Counsel for Applicant :- Anurag Agrahari, Mahima Sahai

Hon'ble Rohit Ranjan Agarwal, J.

Heard learned counsel for the applicant.

The present contempt application has been filed under Section 12 of the Contempt of Courts Act for punishing the Opposite Party for willful disobedience of the judgment and order dated 02.11.2021 passed by this Court in Writ -C No.25143 OF 2021 (Deepak Kumar vs. State of U.P. and 2 others).

It is contended that the applicant had approached this Court seeking direction upon opposite party for restoration of electricity connection of personal tubewell. The Writ Court on 02.11.2021 had directed the opposite party to decide representation under Clause 6.5 of U.P. Electricity Supply Code 2005 by reasoned and speaking order, positively, within a period of three weeks. A copy of the order of Writ Court was sent through registered post on 15.11.2021 but, according to the applicant, till date the order of Writ Court has not been complied with by the opposite party.

Prima facie, a case has been made out for punishing the opposite party for willful disobedience of the judgment and order dated 02.11.2021 passed in the aforesaid writ petition.

However, no notice is issued to the opposite party at this stage. The opposite party is granted one month further time to comply with the order dated 02.11.2021 passed by this Court in Writ-C No. 25143 of 2021 from the date of production of a self verified copy of this order.

The applicant shall supply a duly stamped registered envelope addressed to the opposite party and another self-addressed envelope to the office within one week from today. The office shall send a copy of this order along with the self-addressed envelope of the applicant with a copy of contempt application to the opposite party within one week thereafter and keep a record thereof.

The opposite party shall comply with the directions of the writ court and intimate the applicant the order through the self-addressed envelop within a week thereafter.

In case, the opposite party does not comply with the order, it would be open to the applicant to approach this court again.

With the aforesaid observations, this application is finally disposed of at this stage.

Order Date :- 9.2.2022

Kushal